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Case Number: 23PSCV03742 Hearing Date: July 16, 2026 Dept: G

Puente Hills Business Center v. Golden Gate Finance,
et al (23PSCV03742)

Defendants' Objections to the Tentative Statement of
Decision

On June 9, 2026, Defendants requested a Statement of
Decision and made proposals for inclusion of findings which Defendants claim
were omitted from the Tentative Decision after Court Trial. Specifically, Defendants set forth thirty-three
(33) questions for the court to answer and three (3) "Proposals."

As for the thirty-three (33) additional questions posed by
Defendants, the court is not required to answer specific questions posed by the
parties in rendering its decision so long as that decision states the principal
controverted issues and includes a recitation of the findings made by the court
to decide those issues. See, *Vukovich v. Radulovich* (1991) 235
Cal.App.3d 281, 295 [explaining that "it is for the trial court to
determine what are the "principal controverted issues"— those on which the
outcome of the case turns and that "if findings are made on issues that
determine the case, other issues become immaterial."]

Here, the court's thirty-one (31) page Tentative Decision
listed thirty-five (35) findings of fact which provided the basis for the court's
decision. Further, the court answered
both the Plaintiff's and Defendants' Special Verdict forms. The court answered both special verdict forms
because the parties could not agree on a single special verdict form, even
though the court repeatedly asked the parties to do so. As such, the court
declines to answer the additional thirty-three (33) questions requested by

Defendants since the court has articulated the material facts upon which it relied in reaching its decision. See, *In re Marriage of Williamson* (2014) 226 Cal.App.4th 1303, 1318-19 [explaining that “[t]he statement of decision ‘need do no more than state the grounds upon which the judgment rests, without necessarily specifying the particular evidence considered by the trial court in reaching its decision,’ and that the court is ‘not required to provide specific answers to [a party’s proposed] questions so long as the statement of decision fairly disclose[s] its determination of those issues.’”]. The court finds that the Tentative Decision discloses the grounds upon which the judgment rests and how the court made that determination.

As for Defendants’ three (3) “Proposals,” the court addresses each as follows. Defendants’ proposal to “conduct a hearing, . . . , for the parties, their counsels, and the Court to attempt to harmonize the five Joint Settled Statements” is REJECTED. The parties elected to proceed with trial without the benefit of a court reporter.

As a result, the court ordered the parties to meet and confer after each trial date and to prepare a “Settled Statement” which accurately reflected the evidence received by the court, including the parties’ objections to that evidence. As is evidenced by the court docket, Defendants filed Settled Statements for trial days well after the conclusion of trial. The court finds no benefit months after the conclusion of trial to now attempt to agree on evidence and/or objections to that evidence.

Defendants’ proposal to permit a deposition of Mark Herek is REJECTED. The court finds this proposal an improper discovery request well after the close of discovery in this matter. Further, Plaintiff elected not to call Mark Herek at trial. Although Defendants allege they intended to question Mr. Harek at trial, Defendants did not serve Plaintiff and/or Mr. Harek with a timely trial subpoena or a notice to appear at trial.

Defendants’ proposal to permit a deposition of Marc Sandquist is REJECTED. The court finds this proposal an improper discovery request well after the close of discovery in this matter. Defendants seek this deposition since Mike A’Hearn testified as to a “35% Rule” which Defendants claim was used to preclude Defendants from moving to another suite. The court did not find the testimony by Mike A’Hearn on this issue to be material or persuasive to the ultimate issues decided

by the court.

Finally, as to

Defendants' "Objections," the requested is OVERRULED as untimely. Nevertheless, the court did not rely on the testimony of Mike A'Hearn and the "35% Rule," as evidenced by the thirty-five (35) Findings of Fact listed in the Tentative Decision.

The court intends to make the Tentative Decision the Court's Final Statement of Decision.